

The Public Domain

The public domain consists of all creative work to which no exclusive intellectual property rights apply. Those rights may have expired, be forfeit, waived or may be inapplicable. Because no one holds the exclusive rights, anyone can legally use or reference those works without permission.

As examples, the works of William Shakespeare, Ludwig van Beethoven, Miguel de Cervantes, Zoroaster, Lao Zi, Confucius, Aristotle, L. Frank Baum, Leonardo da Vinci and Georges Melies are in the public domain either by virtue of their having been created before copyright existed, or by their copyright term having expired. Some works are not covered by a country's copyright laws, and are therefore in the public domain; for example, in the United States, items excluded from copyright include the formulae of Newtonian physics and cooking recipes. Other works are actively dedicated by their authors to the public domain; examples include reference implementations of cryptographic algorithms. The term public domain is not normally applied to situations where the creator of a work retains residual rights, in which case use of the work is referred to as "under license" or "with permission".

As rights vary by country and jurisdiction, a work may be subject to rights in one country and be in the public domain in another. Some rights depend on registrations on a country-by-country basis, and the absence of registration in a particular country, if required, gives rise to public-domain status for a work in that country.

Although the term domain did not come into use until the mid-18th century, the concept can be traced back to the ancient Roman law, "as a preset system included in the property right system". The Romans had a large proprietary rights system where they defined "many things that cannot be privately owned" as *res nullius*, *res communes*, *res publicae* and *res universitatis*. The term *res nullius* was defined as things not yet appropriated. The term *res communes* was defined as "things that could be commonly enjoyed by mankind, such as air, sunlight and ocean." The term *res publicae* referred to things that were shared by all citizens, and the term *res universitatis* meant things that were owned by the municipalities of Rome.

When the first early copyright law was originally established in Britain with the Statute of Anne in 1710, public domain did not appear. However, similar concepts were developed by British and French jurists in the 18th century. Instead of "public domain", they used terms such as *publici juris* or *propriete publique* to describe works that were not covered by copyright law.

The phrase "fall in the public domain" can be traced to mid-19th-century France to describe the end of copyright term. The French poet Alfred de Vigny equated the expiration of copyright with a work falling "into the sink hole of public domain" and if the public domain receives any attention from intellectual property lawyers it is still treated as little more than that which is left when intellectual property rights, such as copyright, patents, and trademarks, expire or are abandoned. Copyright law differs by country, and the American legal scholar Pamela Samuelson has described the public domain as being "different sizes at different times in different countries".

In most countries the term of protection of copyright expires on the first day of January, 70 years after the death of the latest living author. The longest copyright term is in Mexico, which has life plus 100 years for all deaths since July 1928. A notable exception is the United States, where every book and tale published before 1931 is in the public domain; US copyrights last for 95 years for books originally published between 1931 and 1978 if the copyright was properly registered and maintained.